

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF LEVANOV AND OTHERS v. RUSSIA

(Applications nos. 40953/21 and 18 others –
see appended list)

JUDGMENT

STRASBOURG

25 April 2024

This judgment is final but it may be subject to editorial revision.



In the case of Levanov and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Peeter Roosma*, President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 4 April 2024,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014, and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a prosecuting party in the

proceedings under the Code of Administrative Offences (the CAO); *Elvira Dmitriyeva v. Russia*, nos. 60921/17 and 7202/18, §§ 77-90, 30 April 2019, concerning administrative convictions for making calls to participate in public events; and *Novikova and Others v. Russia*, nos. 25501/07 and 4 others, 26 April 2016, concerning disproportionate measures against solo demonstrators.

V. REMAINING COMPLAINTS

14. Some applicants raised further additional complaints under Article 6 of the Convention concerning other aspects of fairness of the administrative-offence proceedings. In view of the findings in paragraphs 12-13 above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention;

4. *Holds* that these applications disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 25 April 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Peeter Roosma
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	40953/21 23/07/2021	**Aleksandr Anatolyevich LEVANOV** 1986	Lepekhin Andrey Gennadyevich Chelyabinsk	Rally "Free Navalnyy" Chelyabinsk 23/01/2021	article 19.3 § 1 of CAO	detention for 13 days	Chelyabinsk Regional Court 27/01/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - escorting to and detention at the police station for compiling an offence record between 3.45 p.m. to 11.40 p.m. on 23/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - in both sets of administrative proceedings (in connection with events of 23/01/2021 and 02/03/2022), Art. 10 (1) - conviction for making calls to participate in public events - 02/03/2022 / conviction for a call to participate in an anti-war rally posted on a social network / Article 20.3.3. § 2 / fine of RUB 90,000 / final decision on 07/07/2022 by the Chelyabinsk Regional Court	6,000
2.	41629/21 30/07/2021	**Kristina Dzhonson RAMIRES** 1990	Levenberg Yeva Viktorovna Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 6.1 of CAO	detention for 7 days	Moscow City Court 04/02/2021	Art. 10 (1) - disproportionate measures against solo demonstrators - 23/01/2021 /solo demonstration in support of A. Navalnyy / Moscow/ Article 20.2. § 5 / fine of RUB 10,000 / final decision on 06/04/2021 by the Moscow City Court; 25/02/2021 /solo demonstration in support of A. Navalnyy / Article 20.2. § 8 / fine of RUB 150,000 / 26/02/2021 Tverskoy	7,000

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								District Court of Moscow / final decision on 09/07/2021 by the Moscow City Court, Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record between 9:00 p.m. on 23/01/2021 and 2:30 a.m. on 24/01/2021; between 12:25 p.m. on 31/01/2021 and 11:00 a.m. on 01/01/2021; and between 10:30 p.m. on 25/02/2021 and 5:15 p.m. on 26/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - in all three sets of administrative proceedings (in connection with events of 23/01/2021 and 31/01/2021 and 25/02/2021)	
3.	42393/21 06/08/2021	**Sergey Vladimirovich TOLMACHEV** 1979	Lepekhin Andrey Gennadyevich Chelyabinsk	Rally "Free Navalnyy" Chelyabinsk 23/01/2021	article 20.2 § 8 of CAO	detention for 11 days	Chelyabinsk Regional Court 08/02/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 27/02/2021 for compiling an offence record, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings,	5,000
4.	58082/21 11/11/2021	**Sergey Mikhaylovich FILENKO** 1970	Mezak Ernest Aleksandrovich Saint-Barthélemy-d'Anjou	Rally "Free Navalnyy" Petrozavodsk 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 5,000	Supreme Court of the Republic of Karelia 11/05/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Art. 10 (1) - various restrictions on the right to freedom of expression - 24/02/2022, 03/03/2022, and 15/03/2022 / anti-war posts in the "Vkontakte" social network / Article 20.3.3 § 1 of the CAO / 20/04/2022 Petrozavodsk City Court / fine of RUB 30,000	4,000

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				Rally "Free Navalnyy" Petrozavodsk 21/04/2021	article 20.2 § 5 of CAO	fine of RUB 5,000	Supreme Court of the Republic of Karelia 09/09/2021	(upheld by the Supreme Court of the Republic of Karelia on 31/08/2022).	
5.	9493/22 01/02/2022	**Kristina Borisovna ISAYEVA** 1989	Prosvirkina Kseniya Dmitriyevna Moscow	Rally "Free Navalnyy" Belgorod 21/04/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Belgorod Regional Court 02/08/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
6.	14155/22 18/02/2022	**Mariya Yuryevna ANTYUSHEVA** 1984	Vasin Vladimir Valeryevich Krasnoyarsk	Rally "Free Navalnyy" Krasnoyarsk 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 5,000	Krasnoyarsk Regional Court 19/08/2021	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence record on 31/01/2021	4,000
7.	14828/22 27/02/2022	**Aleksey Aleksandrovich BAVYKIN** 1976	Polyakov Daniil Alekseyevich Voronezh	Rally "Free Navalnyy" Voronezh 21/04/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Voronezh Regional Court 31/08/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record between 7:30 p.m. on 21/04/2021 and 1:10 a.m. on 22/04/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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8.	14843/22 27/02/2022	**Nikita Nikolayevich KABAKOV** 1999	Polyakov Daniil Alekseyevich Voronezh	Rally "Free Navalnyy" Voronezh 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Voronezh Regional Court 30/08/2021	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence record between on 31/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
9.	17399/22 20/03/2022	**Kseniya Sergeyevna MAYOROVA** 2001	Zyryanova Mariya Sergeyevna St Petersburg	Rally "Free Navalnyy" St Petersburg 31/01/2021	article 20.2 § 2 of CAO	fine of RUB 20,000	St Petersburg City Court 21/09/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record between 5:00 p.m. on 31/01/2021 and 01/02/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
10.	17807/22 12/03/2022	**Daniel Vladimirovich CHERKASHIN** 1998	Polyakov Daniil Alekseyevich Voronezh	Rally "Free Navalnyy" Voronezh 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Voronezh Regional Court 21/09/2021	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence record on 23/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
11.	25175/22 22/04/2022	**Aleksey Pavlovich MERKULOV** 1990	Sirosh Fedor Yevgenyevich Moscow	Rally "Free Navalnyy" Moscow 21/04/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 11/11/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings,	3,500

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12.	37796/22 22/07/2022	**Olga Andreyevna KOROBITSINA** 2003	Pilipenko Anastasiya Vladimirovna St Petersburg	Anti-war protest St Petersburg 06/03/2022	article 20.2.2 § 1 of CAO	fine of RUB 10,000	St Petersburg City Court 26/04/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record between 3:10 p.m. on 06/03/2022 and the morning of 07/03/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
13.	38208/22 18/07/2022	**Aleksandr Sergeyevich ABRAMOV** 1996	Levichev Dmitriy Sergeyevich Krasnoyarsk	Anti-war protest Krasnoyarsk 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Krasnoyarsk Regional Court 27/04/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record between 3:30 p.m. and 7:30 p.m. on 06/03/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
14.	39195/22 03/08/2022	**Vladimir Mikhaylovich TOBOROVETS** 1970		Anti-war protest Voronezh 24/02/2022	article 20.2 § 8 of CAO	80 hours of community work	Voronezh Regional Court 06/04/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record between 8:10 p.m. on 24/02/2022 and 10:00 a.m. on 26/02/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	5,000
15.	41207/22 05/08/2022	**Nadezhda Nikolayevna STEPANENKO** 2002	Zaytsev Roman Olegovich Volgograd	Anti-war rally Volgograd 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 20,000	Volgograd Regional Court 05/05/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record between 2:50 p.m. and the evening of 06/03/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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16.	41334/22 12/08/2022	**Svetlana Petrovna SEMENYUK** 1970		Anti-war protest Krasnoyarsk 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Krasnoyarsk Regional Court 11/05/2022	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence record on 06/03/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
17.	41342/22 12/08/2022	**Mikhail Dmitriyevich MILITSIN** 1999	Zaytsev Roman Olegovich Volgograd	Anti-war protest Volgograd 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Volgograd Regional Court 13/04/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record between 2:50 p.m. and the evening of 06/03/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
18.	43109/22 16/08/2022	**Marek PASIERB** 1984		Anti-war protest St Petersburg 25/02/2022	article 20.2.2 § 1 of CAO	fine of RUB 10,000	St Petersburg City Court 19/04/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record between 8:45 p.m. on 25/02/2022 and the afternoon of 26/02/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
19.	30089/23 12/03/2022	**Artem Aleksandrovich SHCHELOKOV** 1988	Polyakov Daniil Alekseyevich Voronezh	Rally "Free Navalnyy" Voronezh 21/04/2021	article 20.2 § 5 of CAO	Fine of RUB 10,000	Voronezh Regional Court 16/09/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record between 7:30 p.m. on 21/04/2021 and 1:10 a.m. on 22/04/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings,	4,000

[1] Plus any tax that may be chargeable to the applicants.